

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD.,
AND CJ DELUZ NIGERIA LTD., *Complainants*

v.

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA
AND RAYA BAKHIREV, *Respondents*.

DOCKET NO. 20-12

Served: January 7, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON COMPLAINANTS' REQUEST FOR A REVISED SCHEDULING ORDER

On January 6, 2021, Complainants filed a request for a revised scheduling order, seeking approximately three additional months for the remaining discovery and briefing deadlines. Complainants assert that good cause is established because of voluminous document production, challenges of working with overseas parties, a January federal trial, and briefing in another Commission proceeding. Complainants also point to an extension of one deadline from December 14, 2020, to December 30, 2020, permitted for Respondents.

In the scheduling order, issued on September 30, 2020, the parties were instructed that “[a]ll requests for extensions will be reviewed for good cause, even if the parties agree on the requested extension.” Scheduling Order at 1. The request does not establish good cause for a three-month extension. The parties may limit the time required by stipulating to relevant facts or settling all or parts of the proceeding. A shorter extension of approximately four weeks is approved.

The motion seeking a revised scheduling order, is **GRANTED IN PART AND DENIED IN PART**. The scheduling order will be revised to the following dates:

February 12, 2021	All depositions completed.
February 22, 2021	All discovery completed.
March 22, 2021	Complainants file brief with proposed findings of fact and appendix.
April 19, 2021	Respondents file opposition brief with proposed findings of fact and responses to Complainants' proposed findings of fact, and appendix.

May 3, 2021

Complainants file reply brief with responses to Respondents' proposed findings of fact.

To ensure timely progress, the parties will continue to file joint status reports by the first day of every month, with the next report due on February 1, 2021. The parties should be prepared to brief the case with discovery received by the February 22, 2021, deadline. All other requirements of the scheduling order should be followed.



Erin M. Wirth
Chief Administrative Law Judge